

**Before the Hon'ble Court of Special Judge-I, CBI, Ernakulam.**

# FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Cochin **PS:** ACB Cochin  
**Year:** 2025  
**FIR No:** RC0332025A0009 **Date:** 28/11/2025

2. **Acts & Sections:**

| Acts                             | Sections             | R/W Section |
|----------------------------------|----------------------|-------------|
| IPC                              | 120(B)               |             |
| IPC                              | 406                  |             |
| IPC                              | 420                  |             |
| IPC                              | 468                  |             |
| IPC                              | 471                  |             |
| PC Act-1988 (As amended in 2018) | 13(2) r/w (13)(1)(a) |             |

3. **Suspected offences:** Forgery, Cheating, Public Servant Obtaining Undue advantage for dishonest performance of duty

(a) **Occurrence of offence:**

**Day:** **Time Period:**  
**From Date:** 28/09/2018 **To Date:** 22/08/2020

(b) **Information Received at PS:**

**Date:** 28/11/2025

(c) **General Diary Reference:**

**Entry No.:** 06  
**Date:** 28/11/2025 **Time:** 11:56:51

4. **Type of Information:** Written

5. **Place of Occurrence:** Kasaragod

(a) **Direction & distance from PS:** 380 Kms North

**Beat No.:**

(b) **Address:**

**Plot No.:** IDBI Bank, Kasaragod Branch **Area:**  
**City:** **Pin:**  
**State:** Kerala **District:** Kasaragod

(c) **In case, outside the limit of this Police Station, then**

**Name of PS:** **District:**

6. **Complainant / Informant:**

**Complainant 1**

(a) **Name:** Mr. Muraleedharan N

(b) **Father's/Husband's Name:**

(c) **Date/Year of Birth:**

(d) **Nationality:** INDIAN

(e) **Passport:**

| Passport No. | Date Of Issue | Place Of Issue |
|--------------|---------------|----------------|
|--------------|---------------|----------------|

(f) **Occupation:** Dy.General Manager

(g) **Address:**

| Plot No | Area | City | State | District | Pin |
|---------|------|------|-------|----------|-----|
|---------|------|------|-------|----------|-----|

7. **Details of known/suspected/unknown accused with full particulars:**

**Accused 1****Name:** Mr.Mahfoose M D, **Father/Husband name:** Ismail M D**Address:**

Mundangalam House, Bevinje, Thekkil Ferry, Kasaragod, Kasaragod, Kerala

**Accused 2****Name:** Unknown Public Servant(s) & Private Person(s)**Address:****8. Reasons for delay in reporting by the complainant/informant:****9. Particulars of properties stolen:**

| Item Name | Age of Property | Estimated Value (in INR) |
|-----------|-----------------|--------------------------|
|-----------|-----------------|--------------------------|

**10. Total value of property stolen:****11. Inquest Report/U.D. Case No., if any:****12. First information contents:**

Central Bureau of Investigation, Anti-Corruption Branch, Cochin has received a complaint dated 08.01.2024 from Shri Muraleedharan N., DGM and Regional Head, IDBI Bank, Kozhikode Region, Ernakulam against Shri Mahfoose M. D., Unknown Public Servants and others alleging that the borrower Shri Mahfoose M. D defrauded IDBI Bank, Kasaragod Branch to the tune of Rs.3.56 Crores.

The complainant inter-alia alleges that Shri Mahfoose M. D. (Borrower), an A-Class registered contractor of the Public Works Department (PWD), Government of Kerala, cheated and defrauded IDBI Bank, Kasaragod Branch in connection with the overdraft facility of Rs.4.00 Crores sanctioned to him under the product 'Property Power'. The borrower executed only two powers of attorney out of the three work orders based on which the loan was sanctioned. He submitted a forged letter dated 30.10.2018 purported to be issued by Kerala SIDCO to confirm acceptance of the POA. Kerala SIDCO later denied receipt of the POA vide letter dated 14.08.2020 and clarified that the borrower had already executed a Power of Attorney in favour of Kerala Financial Corporation, Kasaragod. The borrower also concealed the fact that the NABARD work order under Agreement No. 42/SESC/18-19, on the strength of which the OD facility was assessed, had been terminated by PWD on 11.12.2019. Further, the borrower falsely stated that POA could not be executed for the Nirmiti Kendra work order whereas the said work order had already been assigned to Kerala Financial Corporation in 2018.

The borrower also diverted Rs.0.24 Crores from the OD facility to the account of M/s D4 Entertainment, a film firm promoted by him, and transferred cash to Shri Yasar Arafat, another promoter of the said film company. During verification of the mortgaged lands of Shri Mahfoose M. D. and Shri Maarooof M. D., discrepancies were noticed in the location sketch furnished at the time of sanction. A fresh sketch obtained from Muliya Village Office revealed major differences, including lack of direct access to the entire extent of land and a significant reduction in valuation when compared with the earlier valuation report.

The account became NPA on 22.08.2020 and based on the above, IDBI Bank declared the account as fraud on 14.02.2023 for an amount of Rs.3.56 Crores whereas total due as on 3.1.2024 is Rs.6.68 Crores. Shri Mahfoose M.D in criminal conspiracy with unknown public servants and others forged documents, diverted funds, misrepresented facts, and concealed material information with an intention to defraud the bank and unlawfully gain themselves as alleged in the complaint.

The above acts of the accused persons had caused wrongful loss of Rs. 3.56 Crores to IDBI Bank, Kasaragod Branch and corresponding wrongful gain to themselves, and hence they have committed offences U/s 120 B r/w 420, 468, 471 and 406 of IPC and Sec. 13(2) r/w 13(1)(a) (as amended in 2018).

**13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:****(1) Registered the case and took up the investigation:** Yes

OR

**(2) Directed****Name of IO:**

Naveen Divakar

**Rank:**

INSPECTOR (ACB Cochin)

**No:**

188662

**to take the investigation**

OR

**(3) Refused investigation due to:**

OR

**(4) Transferred To PS:****District:****on point of jurisdiction.****Attached documents:****Document name**



Complaint dated 08.01.2024 of Deputy General Manager and Regional Head, IDBI Bank  
Notification U/s 5 of DSPE Act dated 12.11.2025  
Notification U/s 6 of DSPE Act dated 19.09.2025  
Notification U/s 6 of DSPE Act dated 23.03.2025

**FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.**

**R.O.A.C.**

**14. Signature/Thumb Impression of the complainant/informant**

**Signature of Officer in-charge Police Station**

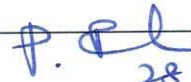
**Name:** P Renukadevi

**Rank:** DY. INSP. GENERAL OF POLICE (ACB Cochin)

**15. Date and time of dispatch to the Court:**

28.11.2025

12-30 hrs.

  
28/11/25

पि. रेणुकादेवी भा.पु.सं.  
P. RENUKADEVI I. P. S.  
पुलिस उपमहानरीक्षक  
Dy. Inspector General of Police  
शाखा प्रमुख/ Head of Branch  
केंद्रीय जांच ब्यूरो/एम्माव, कोचीन  
CBI / ACB, COCHIN



SECRET



**CENTRAL BUREAU OF INVESTIGATION**

**Bank Complaint Cell**

5<sup>th</sup> Floor, CBI Head Quarters,  
5-B, CGO Complex, Lodhi Road,  
New Delhi - 110003

Sub:- Forwarding of Bank Fraud Complaint received from IDBI Bank against Shri Mahfoose, M.D S/o Shri Ismail M D, Add.- Mundangalam House, Bevinje, Thekkil Ferry, Chengala OP, Kasaragod involving amount of Rs 3.56 Crores - reg.

Please refer to Policy Division OM No. 21 / 24 / 2015 / 3169 dated 18.09.2019.

2. Pursuant to the aforesaid OM dated 18.09.2019, HoZ, BSFZ, New Delhi has assigned the subject complaint to HoB, CBI, ACB, Cochin.
3. Accordingly, please find enclosed herewith bank fraud complaint dated 08.01.2024 in original received from Shri Muraleedharan N, Deputy General Manager, IDBI Bank, Kozhikode against Shri Mahfoose, M.D S/o Shri Ismail M D, Add.- Mundangalam House, Bevinje, Thekkil Ferry, Chengala OP, Kasaragod for taking further necessary action at your end.
4. It may please be noted that allegations against 'Unknown Public Servant' are mentioned in the instant complaint.
5. BCC, CBI, New Delhi has not conducted any enquiry in this matter.

(G. Bairwa)

Supdt. of Police

Bank Complaint Cell, CBI, New Delhi

Encl: (As above)

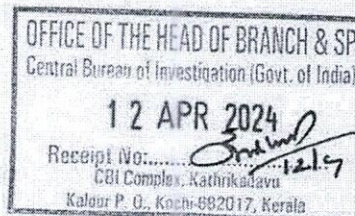
**HoB / CBI / ACB / Cochin**

CBI ID No. 1292 / BCC / 2024 / E / 0022

Dated 05 / 04 / 2024

Copy to:-

- i. The JD (P), CBI, CGO Complex, New Delhi for kind information please.
- ii. The HoZ, CBI, Chennai Zone, Chennai for kind information please.
- iii. The CVO, IDBI Bank for information please.
- iv. Shri Muraleedharan N, Deputy General Manager, IDBI Bank, Kozhikode for information.







CIN: L65190MH2004GOI148838

108  
Dy. No. 18.01.24  
SP Bank Complaint Co

Ref No. IDBI Bank/RBG/450/FRAUD/2022-2023/2

Date: 08<sup>th</sup> Jan 2024

To, Head of Zone,  
Central Bureau of Investigation,  
Bank Security and Fraud Zone (BS & F Zone),  
5-B, 10th Floor, A-Wing, CGO Complex,  
Lodhi Road, New Delhi - 110003

Dy. No. 49(CD) /HOZ/BS&FZ  
Date 17/01/2024

Dear Sir,

**Complaint against borrower Shri Mahfoose M D for perpetrating fraud on IDBI Bank Limited**

Ref:

1. Our Complaint with Ref No. IDBI Bank/RBG/450/FRAUD/2022-2023/1 dtd 28-07-2023
2. Reply received from CBI with F No.. DPCHN 2023/RA0332023A0003/341 dtd 27/12/2023

spbcc  
18/1/24  
I, Muralcedharan N presently working as Deputy General Manager & Regional Head, IDBI Bank Limited, Regional Office, City Plaza, YMCA Cross Road, Kozhikode-673001, in the State of Kerala, being conversant with the facts of the subject matter, is filing this complaint on behalf of IDBI Bank Limited for taking necessary action.

IDBI Bank Limited, (hereinafter referred to as "IDBI" or "the Bank" or "IDBI Bank") is a company incorporated and registered under the Companies Act, 1956, and a banking company within the meaning of Section 5 (c) of the Banking Regulation Act, 1949 and having its Registered Office at IDBI Tower, W.T.C. Complex, Cuffe Parade, Colaba, Mumbai - 400 005, in the State of Maharashtra and one of its branch office at Kasaragod (Door No. KMCXVI 665-675, Cheroor Complex, Opp. New Bus Stand, Kasaragod 671121) in the State of Kerala. IDBI is engaged in banking business and offers wide range of banking products and financial services to corporate and retail customers in the ordinary course of its business.

The present complaint is being filed to inform your office, facts relating to the fraud, misappropriation/diversion of funds and criminal breach of trust committed by Shri Mahfoose M D, S/o Shri Ismail M D, Mundangalam House, Bevinje, Thekkil Ferry, Chengala PO,

आईडीबीआई बैंक लिमिटेड: क्षेत्रीय कार्यालय, सिटी प्लाजा, २री मंजिल, वाईएमसीए क्रॉस रोड, कोझिकोड - ६७३००१ केरल  
IDBI Bank Ltd.: Regional Office, City Plaza, 2nd Floor, YMCA Cross Road, Kozhikode - 673001, Kerala

आईडीबीआई टॉवर, डब्ल्यूटीसी कॉम्प्लेक्स, कफ परेड, मुंबई 400 005, Website: www.idbi.com  
IDBI Tower, WTC Complex, Cuffe Parade, Mumbai - 400 005, Website: www.idbi.com



Kasaragod 671541, who had availed Overdraft Facility (OD Facility) from IDBI Bank, Kasaragod Branch.

The details of the case are as under:-

| 1               | Name of the Bank                          | IDBI Bank Limited                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                  |                                     |                   |                  |                                     |                 |            |      |      |      |    |            |                                              |  |     |       |  |      |      |      |
|-----------------|-------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------|-------------------|------------------|-------------------------------------|-----------------|------------|------|------|------|----|------------|----------------------------------------------|--|-----|-------|--|------|------|------|
| 2               | Name & Address of the Branch              | Kasaragod, Door No. KMC XVI 665-675, Cheroor Complex, Opp. New Bus stand, Kasaragod, Kerala -671121                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                  |                                     |                   |                  |                                     |                 |            |      |      |      |    |            |                                              |  |     |       |  |      |      |      |
| 3               | Date of lodging of complaint              | 28th July 2023                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                  |                                     |                   |                  |                                     |                 |            |      |      |      |    |            |                                              |  |     |       |  |      |      |      |
| 4               | Time, Date & Place of occurrence of fraud | The date of sanction of the loan, i.e., September 28, 2018, may be construed as the date of occurrence of fraud as well since forged documents were submitted by Shri Mahfoose M D during appraisal of the proposal itself.<br>Place of occurrence of fraud: Kasaragod.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                  |                                     |                   |                  |                                     |                 |            |      |      |      |    |            |                                              |  |     |       |  |      |      |      |
| 5               | Name of the Complainant                   | IDBI Bank Limited. Represented by Shri Muralcedharan N DGM & Regional Head, Regional Office, Kozhikode, PIN 673 001                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                  |                                     |                   |                  |                                     |                 |            |      |      |      |    |            |                                              |  |     |       |  |      |      |      |
| 6               | Brief details of the fraud                | <p>Shri Mahfoose M D, (Borrower) an 'A' class registered contractor of Public Works Department (PWD), was sanctioned an overdraft facility by IDBI Bank Kasaragod Branch, of Rs. 4.00 crore including an inner BG limit of Rs. 0.50 crore (OD Facility) to the Borrower under the product 'Property Power 'on the terms and conditions stipulated in the Sanction Letter dated September 28, 2018 (Sanction Letter) and thereafter the Borrower entered into a Facility Agreement dated September 28, 2018 with the Bank (Facility Agreement) agreeing to the terms and conditions of the OD Facility .</p> <p>• IDBI Bank exposure on Shri Mahfoose M D is as under (Rs. crore)</p> <table><tr><th>Facilities</th><th>Sanction date</th><th>Sanctioned amount</th><th>Disbursed amount</th><th>Outstanding amount as on 03-01-2024</th></tr><tr><td>Over Draft (OD)</td><td>28-09-2018</td><td>4.00</td><td>4.00</td><td>6.68</td></tr><tr><td>BG</td><td>28-09-2018</td><td>0.50 (within the total limit of Rs. 4.00 Cr)</td><td></td><td>NIL</td></tr><tr><td>Total</td><td></td><td>4.00</td><td>4.00</td><td>6.68</td></tr></table> <p>The above facilities were secured by way of :</p> <p>(a) 1.Primary Security :All the piece and parcels of immovable properties admeasuring :<br/>1 acre 38 cents comprised in Survey no. 44/2 part3, 19 cents in Survey no. 44/1 part 4, 4</p> | Facilities       | Sanction date                       | Sanctioned amount | Disbursed amount | Outstanding amount as on 03-01-2024 | Over Draft (OD) | 28-09-2018 | 4.00 | 4.00 | 6.68 | BG | 28-09-2018 | 0.50 (within the total limit of Rs. 4.00 Cr) |  | NIL | Total |  | 4.00 | 4.00 | 6.68 |
| Facilities      | Sanction date                             | Sanctioned amount                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Disbursed amount | Outstanding amount as on 03-01-2024 |                   |                  |                                     |                 |            |      |      |      |    |            |                                              |  |     |       |  |      |      |      |
| Over Draft (OD) | 28-09-2018                                | 4.00                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 4.00             | 6.68                                |                   |                  |                                     |                 |            |      |      |      |    |            |                                              |  |     |       |  |      |      |      |
| BG              | 28-09-2018                                | 0.50 (within the total limit of Rs. 4.00 Cr)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                  | NIL                                 |                   |                  |                                     |                 |            |      |      |      |    |            |                                              |  |     |       |  |      |      |      |
| Total           |                                           | 4.00                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 4.00             | 6.68                                |                   |                  |                                     |                 |            |      |      |      |    |            |                                              |  |     |       |  |      |      |      |



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|--|--|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  |  | <p>cents in Survey no.45/5 part 2 of Muliya Village under Muliya Grama Panchayath, Revenue mandal Kasaragod, Kasaragod District owned by Shri Mahfoose M D.</p> <p>(a) 2. All the piece and parcels of immovable properties admeasuring :</p> <p>1 Acre 56 Cents comprised in the survey no.44/1 part 4, 5 cents in survey no.27/4 of Muliya Village under Muliya Grama Panchayath , Revenue mandal Kasaragod, Kasaragod District owned by Shri Maaroo M D (collectively referred to as the Mortgaged Lands)</p> <p>(b) Personal Guarantees :<br/>Irrevocable and unconditional personal guarantees of<br/>Shri. Mahfoose M D &amp;<br/>Shri Maaroo M D &amp;<br/>Shri Ismail M D .</p> <ul style="list-style-type: none"> <li>• The Borrower had also availed separate advances/loan facilities from South Indian Bank and Kerala Financial Corporation (KFC).</li> <li>• The OD Facility sanctioned by IDBI Bank was assessed based on <i>following</i> three work orders already assigned to the Borrower ; <ul style="list-style-type: none"> <li>a) Access development and beautification works as part of Bekal Destination Development contract no Tech/7.RNKW Nimrithi Kendra for Rs. 1.15 crore;</li> <li>b) Development &amp; Improvement works of Kerala SIDCO – Major Industrial Estate, Ollur, Thrissur Agreement No KSCN/01/2018 for Rs.1.16 crore; and</li> <li>c) NABARD work 2017-18 under RIDF XXIII at PWD Roads Division, Alappuzha, Agreement No. 42/SESC/18-19 dated <i>July</i>12,2018 for Rs. 4.34 crore.</li> </ul> </li> <li>• As per the terms of the Sanction Letter, the disbursement of the OD Facility was subject to the Borrower assigning the aforesaid work orders by executing a power of attorney and escrowing of the receivable of the projects through IDBI Bank.</li> <li>• However, the Borrower, executed power of attorneys only for two of the above three work orders in favour of the Bank with an intention to get disbursement from IDBI Bank fraudulently. Aberrations noted in these two power of attorneys are mentioned as below :</li> </ul> |
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|--|--|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  |  | <p>i. The Borrower had executed Power of attorney dated October 01,2018 favouring IDBI Bank for the work order : Development &amp; Improvement works of Kerala SIDCO – Major Industrial Estate, Ollur, Thrissur, Agreement No. KSCN/01/2018, of Kerala SIDCO wherein the Borrower, inter alia, authorized the Bank to collect monies due to him in respect of the aforesaid work order/contract. In this connection, Borrower even submitted a forged letter dated October 30,2018 purported to be issued by Kerala SIDCO, wherein they confirmed having accepted the aforesaid power of attorney executed by the Borrower in favour of the Bank. However, subsequently Kerala SIDCO, vide its letter KSCDN/IB/05/2018 dated <i>August 14,2020</i> informed the Bank that they had not received any such power of attorney . They also informed that Kerala SIDCO, during 2018 at the behest of the Borrower, had already accepted a Power of Attorney executed by the borrower in favour KFC, Kasaragod for the subject work which was still in force. Further, Kerala SIDCO re-affirmed the aforesaid, vide its letter dated <i>November 08,2022</i>. Thus, the Borrower submitted a forged letter dated <i>October 30,2018</i> purported to be issued by Kerala SIDCO to the Bank with a clear intention to cheat the Bank and get disbursements from the Bank fraudulently. .</p> <p>ii. The Borrower had also executed Power of Attorney dated <i>October 03,2018</i> favouring IDBI Bank for the NABARD work 2017-18 under RIDF XXIII at PWD Roads Division, Alappuzha, Agreement No. 42/SESC/18-19 dated <i>July 12,2018</i> for Rs. 4.34 crore. However, on subsequent inquiries made by the Bank, PWD confirmed to the Bank' vide letter/email dated <i>September 16,2020</i> that, on <i>December 11,2019</i>, the work contract was terminated by PWD. The Borrower did not inform about the termination of the aforesaid work contract to the Bank, which also shows the malafide intention of the Borrower.</p> <ul style="list-style-type: none"> <li>• As regards the third work order of Nirmithi Kendra is concerned, the Borrower had falsely informed IDBI Bank,</li> </ul> |
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|  | <p>at the time of sanction, that Nirmithi Kendra does not permit execution of PoA and accordingly the Borrower did not execute a Power of Attorney in favour of the Bank for the said work order. However, on subsequent inquiries, Bank came to know that the work order of Nirmithi Kendra was already assigned to Kerala Financial Corporation (KFC), Kasaragod Branch in the year 2018 and Bank even received an email confirmation from KFC in this regard on August 14, 2020. Thus, the Borrower misrepresented the facts and made false submissions to get disbursements from IDBI Bank.</p> <ul style="list-style-type: none"><li>• Thus, the Borrower submitted forged documents, misrepresented facts and made false statements and misled the Bank to avail the said facility from the Bank and made unjust enrichment at the cost of the Bank.</li><li>• Moreover, the Borrower had utilized the disbursements from the OD Facility to the tune of Rs. 0.24 crore, through multiple transactions, for investing in a film company named M/s D4 Entertainment, where Shri Mahfoose himself was one of the promoters. Also, funds out of the OD Facility were transferred to one Shri Yasar Arafat, who was another promoter of the said film company. Significant cash withdrawals, transfer of funds to cooperative societies, other banks and KFC were also observed. Hence it was evident that the Borrower made diversion/ siphoning of huge funds. On noting the aforesaid, Bank made inquiries with the Borrower as regards the aforesaid <u>siphoning/diversion of funds</u>. The Borrower vide its letter dated June 10, 2020 has acknowledged having diverted the funds. Thereafter Bank decided not to renew the OD Limit and account turned in to NPA on August 22, 2020. Based on above observations, the account was declared as fraud on February 14, 2023 for amount Rs. 3.56 crore and reported to RBI on March 1, 2023</li><li>• On August 22, 2020, the OD Facility turned NPA due to non-renewal of the same by the Bank. The Bank issued Recall Notice on August 28, 2020 and initiated its recovery proceedings under SARFAESI Act, 2002 and issued a Demand Notice under Section 13(2) on January 04, 2021 and filed a recovery application before Hon'ble DRT, Ernakulam on July 12, 2021. DRT -I Ernakulam (OA : 274 of 20/21) hearing was initially scheduled on December 26, 2022, but later adjourned to March 20,</li></ul> |
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|---|--------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                                              | <p>2023 and further adjourned to July 24, 2023 and the said application is pending.</p> <ul style="list-style-type: none"> <li>On June 23, 2022, news appeared in the media about arrest of the Borrower by Kasaragod Crime Branch Police on the basis of a complaint filed by South Indian Bank for submitting fraudulent documents and availing loan. South Indian Bank has also declared the account of the Borrower as fraud on November 10, 2021.</li> <li>Further, during subsequent visit to Mortgaged Lands owned by Mr Mahfoose M D and Mr Maaroo M D (collectively referred to as the "Mortgagors") , it was found that the boundaries of the Mortgaged Lands were not identifiable . Therefore the Branch obtained location sketch afresh of the Mortgaged Lands, from the concerned Revenue authorities. After obtaining the aforesaid location sketch dated 19-06-2023-the Branch conducted fresh valuation of the Mortgaged Lands through empanelled valuers of the Bank and the valuers vide their report dated 05-07-2023 &amp; 21-06-2023 submitted valuation report of the Mortgaged Lands.</li> <li>On comparison of the valuation report dated 05-07-2023 &amp; 21-06-2023 and the earlier valuation report dated 10-09-2018 &amp; 27-09-2018 submitted at the time of sanction of the Loan (which was considered by the Bank at the time of sanction) it is seen that the value of the Mortgaged Lands has been considerably diminished.</li> <li>As per the latest valuation report dated 05-07-2023 &amp; 21-06-2023, direct access is available only to some extent of Mortgaged land. As per the location sketch submitted by the Mortgagors at the time of sanctioning, direct access was shown as available to the entire extent of the Mortgaged Lands. There is mismatch in location sketch submitted at the time of sanctioning and new location sketch obtained from the Village Office, Muliya . The value of the Mortgaged Lands diminished, as presently there is no direct access to the Mortgaged Lands and this shall badly affect the recovery prospects of the Bank</li> </ul> |
| 7 | Name of the Accused Person                                   | Shri Mahfoose M D , Aadhaar No. 6143 8529 6564, PAN Card No CKAPM2029R                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 8 | Role of accused person including the role of public servants | <p>Role of accused person, Shri Mahfoose M D:</p> <p>Misappropriation and criminal breach of trust Siphoning /Diversion of funds and criminal misappropriation of funds: The accused had utilized the funds out of the sanctioned facility to the tune of Rs.0.24crore. through multiple transactions, for investing in a film company named M/s D4 Entertainment, where accused himself was one of the</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |



promoters. Also, funds out of the OD Facility was also transferred to one ShriYasar Arafat, who was another promoter of the said film company. Significant cash withdrawals, transfer of funds to cooperative societies, other bank and KFC were also observed. . The said diversion of the funds was done by the Borrower after specifically agreeing with the Bank under the Facility Agreement that the said OD Facility shall be utilized exclusively for the purpose for which the said facility is sanctioned and for no other purpose whatsoever. Thus, the accused has committed serious diversion of the funds out of the loans sanctioned from the Bank.

Cheating and forgery: The accused had executed Power of Attorney dated *October 01,2018* favouring IDBI Bank for the work order : Development & Improvement works of Kerala SIDCO – Major Industrial Estate, Ollur, Thrissur, Agreement No. KSCN/01/2018, of Kerala SIDCO wherein the accused inter alia, authorized the Bank to collect monies due to him in respect of the aforesaid work order/contract. In this connection, accused submitted a forged letter dated *October 30,2018* purported to be issued by Kerala SIDCO wherein they accepted the aforesaid Power of Attorney executed by the accused in favour of the Bank. . Thus, the accused submitted a forged letter dated *October 30,2018* purported to be issued by Kerala SIDCO to IDBI Bank with a clear intention to cheat the Bank and get disbursement from the Bank fraudulently.

The accused had also executed Power of Attorney dated *October 03,2018* favoring IDBI Bank for the NABARD work 2017-18 under RIDF XXIII at PWD Roads Division, Alappuzha, Agreement No. 42/SESC/18-19 dated *July 12,2018* for Rs. 4.34 crore. However, on subsequent inquiries made by the Bank, PWD had confirmed to the Bank vide letter/email dated *August 14,2020* that, on *December 11,2019*, the work contract was terminated by PWD. The accused did not inform about the termination of the aforesaid work contract to the Bank which also shows the malafide intention of the Borrower.

As regards the third work order of Nirmithi Kendra the accused had falsely informed IDBI Bank that Nirmithi Kendra does not permit execution of PoAs and thus did not execute a Power of Attorney in favour of the Bank for the said work order. However, subsequent to inquiries, Bank came to know that the



|    |                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|----|----------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                    | <p>work order of Nirmithi Kendra was already assigned to Kerala Financial Corporation (KFC), Kasaragod Branch in the year 2018 and Bank even received an email confirmation from KFC in this regard on August 15,2020. Thus, the accused misrepresented the facts and made false submissions to the Bank to fraudulently get money from IDBI Bank.</p> <p>It is submitted that based on the assignment of the aforesaid work orders, the Bank had disbursed the OD limit to the accused. The fact that the accused submitted a forged letter and hid the fact of termination of an assigned work order clearly shows his intention to cheat the Bank to avail the said facility fraudulently from the Bank.</p> <p>The above said illegal act had been done by the said accused with malafide / deliberate intention to gain undue advantage/unjust benefit out of the monies lent out of public monies and he gained unlawfully at the cost of public at large. Moreover, having availed loan lent out of the public monies, the offence committed by the accused amounts to fraud not only against the bank, but against the public also.</p> |
| 9  | Graved irregularities committed by public servants | Zonal Staff Accountability Committee, Bengaluru, at its 22 <sup>nd</sup> meeting, held on February 12,2021, deliberated on the case and observed that no staff accountability was discernible. Post declaration of fraud, staff accountability examination is under process.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 10 | Role of common conspirator                         | To be investigated                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 11 | The names and addresses of prosecution witnesses   | <p>1) Shri C. P. Susmith<br/>Branch Head,<br/>IDBI Bank Ltd., Kanhangad Branch.<br/>Nithyananda Building, Main Road,<br/>Kanhangad, Kerala 671315<br/>Mobile No:9496572020, 0467 2205210<br/>Email : susmithcp@idbi.co.in</p> <p>2) Shri Rahul P K<br/>Relationship Manager<br/>IDBI Bank Ltd., Kasaragod Branch.<br/>Cheroor Complex, Opp New Bus Stand,<br/>Kasaragod, Kerala 671121<br/>Mobile No: 9496341387, 04994 231410<br/>Email : rahul.pk@idbi.co.in</p> <p>3) Shri Sunil Kumar T<br/>Branch Head<br/>IDBI Bank Ltd., Kasaragod Branch.<br/>Cheroor Complex, Opp New Bus Stand,<br/>Kasaragod, Kerala 671121</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |



|    |                                                                                                                         |                                                                                                                |
|----|-------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|
|    |                                                                                                                         | Mobile No: 7025014444, 04994 231410<br>Email : t.sunil@idbi.co.in                                              |
| 12 | Action taken by the bank against public servant(s) including departmental proceedings initiated. If so, details thereof | Mentioned at Para 9 above                                                                                      |
| 13 | Whether investigation conducted by the bank. If yes, details of the major findings                                      | Mentioned at Para 6 above.                                                                                     |
| 14 | Availability of original document(s)                                                                                    | Original documents are with IDBI Bank Ltd.,<br>Cheroor Complex, Opp New Bus Stand,<br>Kasaragod, Kerala 671121 |
| 15 | Whether accused persons were involved in any other fraud in the bank on an earlier occasion                             | Not to our knowledge .                                                                                         |
| 16 | Whether the fraud has interstate, international, ramifications. If yes, give details.                                   | Not to our knowledge.                                                                                          |
| 17 | Whether registration is authorized by the CVO of the bank                                                               | Yes                                                                                                            |

The Proposed accused/ Borrower was accorded appropriate opportunity and was heard vis -a vis the allegations in the complaint. The instant complaint is being submitted after reconciling the submissions made by the proposed accused with the allegations.

In view of the facts stated above, I being the authorized official of IDBI Bank Ltd., request your good office to take up the instant case for investigation and register a suitable case under appropriate sections of law against the perpetrator for perpetrating fraud on IDBI Bank to the tune of Rs. 3.56 Crore ( GPO ) whereas total due as on 3rd Jan 2024 is Rs.6.68 Crores.

I , also request you to investigate the role of accused person as mentioned at Para 7 above, along with role of other common conspirators / unknown public servants, if any, for perpetrating fraud on IDBI Bank Ltd. and take necessary action according to law for their



acts of forgery, fraud, cheating, criminal misappropriation of public fund & criminal breach of trust in order to cheat the Bank and thereby causing loss & damage to the public money.

Yours faithfully,  
For IDBI Bank Ltd.,

(-----)  
(Authorised Signatory)

CC: Supdt. of Police & HoB,  
Central Bureau of Investigation,  
Anti Corruption Branch,  
Kathirikkadavu, Kaloor, P.O.,  
Cochin -682017

मुरलीधरन. एन MURALEEDHARAN. N  
डि.जि.एम & क्षेत्रीय प्रमुख DGM & Regional Head  
कोझिकोड क्षेत्र / Kozhikode Region  
ईआईएन / EIN: 106675



மூலக்கிராமம்  
தலைவர் & மூலக் கிராமம்  
தலைவர் & மூலக் கிராமம்  
தலைவர் & மூலக் கிராமம்



13/11/2025  
[TO BE PUBLISHED IN THE GAZETTE OF INDIA, PART II, SECTION 3, SUB-SECTION (II)]

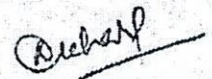
GOVERNMENT OF INDIA  
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES AND PENSIONS  
(DEPARTMENT OF PERSONNEL AND TRAINING)  
NEW DELHI

NOTIFICATION

Dated the 12<sup>th</sup> November 2025

S.O.— In exercise of the powers conferred by sub-section (1) of section 5 read with section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946), the Central Government with the consent of the State Government of Kerala, issued vide Notification No. G.O.(Ms.) No. 59/2025/HOME, dated 23.03.2025, Home (M) Department, Thiruvananthapuram (S.R.O.No. 315/2025) and Erratum Notification No. G.O.(Ms.) No. 175/2025/HOME, dated 19.09.2025, Home (M) Department, Thiruvananthapuram (S.R.O.No. 1089/2025), hereby extends the powers and jurisdiction of the members of the Delhi Special Police Establishment in the whole state of Kerala for the investigation of offences punishable under sections 120 B read with sections 420, 468, 471 and 406 of the Indian Penal Code, 1860 (Central Act 45 of 1860) and sub section (2) read with clause (a) of sub section (1) of section 13 of the Prevention of Corruption Act, 1988 (Central Act 49 of 1988) (as amended Act 16 of 2018) against Shri Mahfoose M.D, and unknown public servants and others, if any, for commission of offences punishable under the said Acts and any other offences committed in the course of transaction arising out of the same fact, in regard to this case, within the whole State of Kerala.

[F. No. 228/88/2025-AVD-II]



(Rajeev Kumar Khare)

Under Secretary to the Government of India

To,

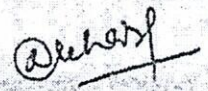
The Manager,  
Govt. of India Press,  
Mayapuri, Ring Road,  
New Delhi-110064

F. No. 228/88/2025-AVD-II

New Delhi dated: 12.11.2025

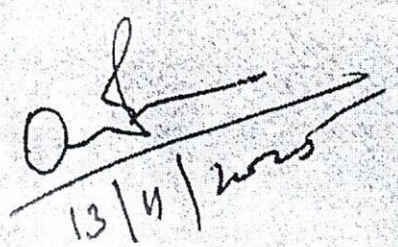
Copy to

- (i) The Chief Secretary, Govt. of Kerala, Govt. Secretariat, Thiruvananthapuram-695001.
- (ii) The Director, Central Bureau of Investigation (CBI), CGO Complex, New Delhi.
- (iii) Director of Prosecution, CBI, CGO complex, New Delhi.
- (iv) NSMC, Room No. 10, 9th Floor, DoP, CBI, CGO Complex, New Delhi-110003.
- (v) Guard File.



(Rajeev Kumar Khare)

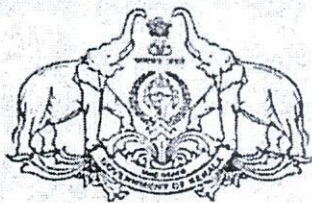
Under Secretary to the Government of India

  
13/11/2025



35  
Annex - 4

കേരള സർക്കാർ  
Government of Kerala  
2025



Regn.No. KERBIL/2012-45073  
dated 05-09-2012 with RNI  
Reg No.KL/TV(N)/634/2021-2023

# കേരള ഗസറ്റ് KERALA GAZETTE

അസാധാരണം  
EXTRAORDINARY

ആധികാരികമായി പ്രസിദ്ധപ്പെടുത്തുന്നത്  
PUBLISHED BY AUTHORITY

|                       |                                                           |                                                                                                             |              |      |
|-----------------------|-----------------------------------------------------------|-------------------------------------------------------------------------------------------------------------|--------------|------|
| വാല്യം 14<br>Vol. XIV | തിരുവനന്തപുരം,<br>തിങ്കൾ<br>Thiruvananthapuram,<br>Monday | 2025 മാർച്ച് 24<br>24th March 2025<br>1200 മീനം 10<br>10th Meenam 1200<br>1947 ചൈത്രം 3<br>3rd Chaitra 1947 | നമ്പർ<br>No. | 1123 |
|-----------------------|-----------------------------------------------------------|-------------------------------------------------------------------------------------------------------------|--------------|------|

GOVERNMENT OF KERALA

Home (M) Department

NOTIFICATION

G.O.(Ms.) No. 59/2025/HOME

Dated, Thiruvananthapuram, 23<sup>rd</sup> March, 2025

S. R. O. No. 315/2025

In exercise of the powers conferred by section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946), the Government of Kerala hereby accord consent to the members of the Delhi Special Police Establishment to exercise powers and jurisdiction in the whole state of Kerala for the investigation of offences punishable under section 120 B read with sections 420,468,471 and 406 of the Indian Penal Code,1860 (Central Act 45 of 1860) and sub section (2) read with clause (a) of sub section (1) of section 13 of the Prevention of Corruption Act, 1988 (Central Act 49 of 1988) as it stood prior to the commencement of the Prevention of Corruption (Amendment) Act, 2018 (Central Act 16 of





2018) against Shri Mahfoose M.D. and unknown public servants and others, if any, for commission of offences punishable under the said Acts and any other offences committed in the course of transaction arising out of the same fact, in regard to this case, within the whole State of Kerala.

By order of the Governor,

DISHWANATH SINHA  
*Additional Chief Secretary to Government*

### **Explanatory Note**

(This does not form part of the notification, but is intended to indicate its general purport.)

The Central Bureau of Investigation, Anti-Corruption Branch, Cochin have requested the Government of Kerala to accord consent under section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946) for the investigation of alleged commission of offences under section 120 B read with sections 420, 468, 471 and 406 of the Indian Penal Code, 1860 (Central Act 45 of 1860) and sub section (2) read with clause (a) of sub section (1) of section 13 of the Prevention of Corruption Act, 1988 (Central Act 49 of 1988) as it stood prior to the commencement of the Prevention of Corruption (Amendment) Act, 2018 (Central Act 16 of 2018) against Shri Mahfoose M D. and unknown public servants and others. Government have examined the matter in detail and have decided to accord consent under section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946) to the Delhi Police Establishment for the same.

The notification is intended to achieve the above object.





# കേരള ഗസറ്റ് KERALA GAZETTE

അസാധാരണം  
EXTRAORDINARY

ആധികാരികമായി പ്രസിദ്ധപ്പെടുത്തുന്നത്  
PUBLISHED BY AUTHORITY

|                       |                                                           |                                                                                                                   |              |      |
|-----------------------|-----------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|--------------|------|
| വാല്യം 14<br>Vol. XIV | തിരുവനന്തപുരം,<br>തിങ്കൾ<br>Thiruvananthapuram,<br>Monday | 2025 സെപ്റ്റംബർ 22<br>22nd September 2025<br>1201 കന്നി 6<br>6th Kanni 1201<br>1947 ഭാദ്രം 31<br>31st Bhadra 1947 | നമ്പർ<br>No. | 3376 |
|-----------------------|-----------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|--------------|------|

GOVERNMENT OF KERALA  
Home (M) Department  
ERRATUM NOTIFICATION

G.O.(Ms.) No. 175/2025/HOME

*Dated, Thiruvananthapuram, 19<sup>th</sup> September, 2025*

S. R. O. No. 1089/2025

In the notification issued under G.O. (Ms.) No. 59/2025/HOME dated 23<sup>rd</sup> March, 2025 and published as S.R.O. No. 315/2025 in the Kerala Gazette Extraordinary No.1123 dated 24<sup>th</sup> March, 2025, in the preamble and in the explanatory note, *for* the words, phrases, digits " as it stood prior to





the commencement of the Prevention of Corruption (Amendment) Act, 2018 (Central Act 16 of 2018)"  
*read* (as amended Act 16 of 2018).

By order of the Governor,

BISHWANATH SINHA,  
*Additional Chief Secretary to Government.*

### Explanatory Note

(This does not form part of the notification but is intended to indicate its general purport.)

For the reasons stated in the notification, the Government have decided to issue an erratum to rectify the errors crept in the notification issued under G.O.(Ms.)No. 59/2025/HOME dated 23<sup>rd</sup> March, 2025 and published as S.R.O.No.315/2025 in the Kerala Gazette Extraordinary No.1123 dated 24<sup>th</sup> March, 2025.

The notification is intended to achieve the above object.

PUBLISHED BY THE SUPERINTENDENT OF GOVERNMENT PRESSES  
AT THE GOVERNMENT CENTRAL PRESS, THIRUVANANTHAPURAM, 2025

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Date: 2025.09.22 01:09:24 +05:30